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The Swedish Higher Education Act (1992:1434)

The Swedish Higher Education Act contains provisions about the higher education institutions that are accountable to the Government. These provisions are often supplemented by the regulations in the Higher Education Ordinance.

Department/Agency: Ministry of Education and Research, Sweden
Issued: 17 December 1992

This version contains amendments up to and including the Act on Amendment of the Higher Education Act (2019:505).

Note that there may be errors in the statutes. Therefore always check the text against the printed version. The translation is not an official translation.

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Chapter 1 Initial provisions

Section 1

This act contains provisions relating to higher education institutions for which the accountable authority is the Government.

Hereinafter, higher education institution shall refer to universities and university colleges unless otherwise specified. (Ordinance 2012: 910).

Section 2

As the accountable authority, the Government shall establish higher education institutions for the provision of:

1. courses and study programmes based on scholarship or artistic practice and on proven experience, and
2. research and artistic research as well as development work.

The mandate of higher education institutions shall include third stream activities and the provision of information about their activities, as well as ensuring that benefit is derived from their research findings.

References to research below also apply to artistic research, unless otherwise provided. Ordinance (2013:119).

Section 3

The operations of higher education institutions shall be organised to ensure that there are close links between research, and courses and study programmes.

Section 3a

/Ceases to apply: 1 January 2020/ In the course of their operations, higher education institutions shall uphold academic credibility and good research practice. Ordinance (2000:1370).

/Enters into effect: 1 January 2020/ In the course of their operations, higher education institutions shall uphold academic credibility and good research practice.

The Act on responsibility for good research practice and the examination of research misconduct (2019:504) contains provisions on the responsibility held by researchers and the entity responsible for research for research being conducted in accordance with good research practice and on an independent board that must examine allegations of research misconduct. Ordinance (2019:505).

Section 4

The operations of higher education institutions shall be arranged to ensure that high standards are attained in courses and study programmes and in research.

The resources available shall be used effectively to sustain a high standard of operation.

Quality assurance procedures are the shared concern of staff and students at higher education institutions. Ordinance (2013:119).

Section 4a

Students shall be entitled to exert influence over the courses and study programmes at higher education institutions.

Higher education institutions shall endeavour to enable students to play an active role in the continued development of courses and study programmes. Ordinance (2000:260).

Section 5

In the course of their operations, higher education institutions shall promote sustainable development to assure for present and future generations a sound and healthy environment, economic and social welfare, and justice.

Equality between women and men shall always be taken into account and promoted in the operations of higher education institutions.

Furthermore, in their operations higher education institutions should promote understanding of other countries and of international circumstances.

Higher education institutions shall also actively promote and widen recruitment to higher education. Ordinance (2005:1208).

Section 5a

Has been repealed by ordinance (2010:701).

Section 6

The following general principles shall apply to research:

1. research issues may be freely selected,
2. research methodologies may be freely developed, and
3. research results may be freely published.

Section 7

Courses and study programmes shall be provided at:

- first cycle,
- second cycle, and
- third cycle.

Ordinance (2006:173).

Section 8

First-cycle courses and study programmes shall be based fundamentally on the knowledge acquired by pupils in national study programmes in the upper-secondary schools or its equivalent. The Government may, however, permit exceptions for courses and study programmes in the fine, applied or performing arts.

First-cycle courses and study programmes shall develop:

- the ability of students to make independent and critical assessments,
- the ability of students to identify, formulate and solve problems autonomously, and
- the preparedness of students to deal with changes in working life.

In addition to knowledge and skills in their field of study, students shall develop the ability to:

- gather and interpret information at a scholarly level,
- stay abreast of the development of knowledge, and
- communicate their knowledge to others, including those who lack specialist knowledge in the field. Ordinance (2009:1037).

Section 9

Second-cycle courses and study programmes shall be based fundamentally on the knowledge acquired by students during first-cycle courses and study programmes, or its equivalent.

Second-cycle courses and study programmes shall involve the acquisition of specialist knowledge, competence and skills in relation to first-cycle courses and study programmes, and in addition to the requirements for first-cycle courses and study programmes shall:

- further develop the ability of students to integrate and make autonomous use of their knowledge,

- develop the students' ability to deal with complex phenomena, issues and situations, and
- develop the students' potential for professional activities that demand considerable autonomy, or for research and development work. Ordinance (2006:173).

Section 9a

Third-cycle courses and study programmes shall be based fundamentally on the knowledge acquired by students in first and second-cycle courses and study programmes, or its equivalent.

In addition to the requirements for first and second-cycle courses and study programmes, third-cycle courses and study programmes shall develop the knowledge and skills required to be able to undertake autonomous research. Ordinance (2006:173).

Section 10

Has been repealed by ordinance (2012:910).

Section 10a

Qualifications shall be awarded in the first, second or third cycle. The Government issues regulations on the qualifications that may be awarded and the cycle in which they shall be awarded. Ordinance (2006:173).

Section 11

Third-cycle qualifications may be awarded by universities.

A university may not, however, award a third-cycle qualification

1. if permission to award such a qualification is required and the university has not been given such permission, or
2. in cases where a decision pursuant to the second paragraph of Section 14 that such a qualification may not be awarded applies to the university.

The Government may issue regulations requiring permission for universities to award third-cycle qualifications. If such regulations have been laid down, permission is granted by the agency nominated by the Government. Ordinance (2012:490).

Section 11 a

Has been repealed by ordinance (2009:764).

Section 12

The agency nominated by the Government decides on permission to award qualifications

1. in the third cycle at higher education institutions that are not universities, and
2. in the first and second cycle at universities and higher education institutions.

The Government issues regulations on the qualifications that may be awarded at Sveriges lantbruksuniversitet (Swedish University of Agricultural Sciences) and Försvarshögskolan (Swedish Defence University). Ordinance (2012:490).

Section 13

Permission to award a qualification may only be granted if

1. a programme meets the requirements made of higher education in this chapter as well as the special requirements laid down by ordinance, and
2. award of the qualification is, from a national perspective, in the public interest. Ordinance (2009:764).

Section 14

If the requirements stipulated in item 1 of Section 13 above are not fulfilled for a specific qualification that a university or higher education institution has permission to award or is entitled to award pursuant to the first paragraph of Section 11, the agency nominated by the Government shall enjoin the higher education institution to remedy shortcomings within a specified period.

If these shortcomings persist either completely or to some substantial extent after the expiry of the specified period, the agency nominated by the Government may decide that the university or higher education institution may no longer award a qualification on which they impinge.

Even if it has been decided pursuant to the second paragraph above that a specific qualification may no longer be awarded, the university or higher education institution may award the qualification to students who have begun their studies at the university or higher education institution before the decision. This applies, however, only if their studies comprise a programme, course or component of a third-cycle programme that can lead to the award of a qualification subject to the decision. Ordinance (2012:490).

Section 15

The agency nominated by the Government may decide that a decision pursuant to the second paragraph of Section 14 shall no longer apply to a qualification that prior to this decision a university was entitled to award by virtue of the first paragraph of Section 11.

A decision pursuant to the above paragraph may only be made if the requirements for the programme laid down in item 1 of Section 13 above are fulfilled. Ordinance (2012:490).

Section 16

Questions arising from the second paragraph of Section 14 shall be decided by the Government if they refer to the Swedish University of Agricultural Sciences or the Swedish Defence University. In making its decision the Government may take into account whether from a national perspective it is in the public interest for a qualification to be awarded by the Swedish University of Agricultural Sciences or the Swedish Defence University. Ordinance (2009:764).

Section 17

A higher education institution listed in the annex to this Act may award a joint degree together with

1. another higher education institution,
2. an independent course provider entitled to award a qualification pursuant to the Act Concerning Authority to Award Certain Qualifications (1993:792), or
3. a higher education institution outside Sweden that is not a physical individual.

The term joint degree refers to a qualification that may be awarded by the higher education institutions that have jointly organised courses and programmes that can lead to the award of the qualification. These courses and programmes must be offered through the educational cooperation of the institutions referred to in the first paragraph above.

The Government issues additional regulations on joint degrees. Ordinance (2009:695).

Section 18

A higher education institution referred to in Section 17 may within the framework of educational cooperation pursuant to the second paragraph of the same section decide to delegate administrative tasks relating to admission to and the transfer of credits from courses and programmes to

1. another higher education institution,
2. an independent course provider entitled to award a qualification pursuant to the Act Concerning Authority to Award Certain Qualifications (1993:792), or
3. a higher education institution outside Sweden that is not a physical individual.

The administrative tasks delegated may only mean that

1. students admitted to one component of the programme by another higher education institution offering this component shall be regarded as students who have been admitted to the higher education institution while they are pursuing their studies there, and
2. students will be given credit for successful completion of a component of the programme at another higher education institution within a programme at the higher education institution without any additional review. Ordinance (2009:695)

Chapter 2 Organisation of public-sector higher education institutions

Section 1

The Riksdag decides which public-sector higher education institutions shall exist.

Section 2

The board of governors of a higher education institution shall supervise all of its operations and assume responsibility for the fulfilment of its mandate.

Section 3

A vice-chancellor who is directly accountable to the board of governors shall be appointed to manage the operations of each higher education institution.

Section 4

The Government shall appoint the chair of the board of governors of a higher education institution. The vice-chancellor shall be a member of the board of governors. Teachers and students at the higher education institution shall be entitled to representation on the board of governors. The Government or the authority decided by the Government may, pursuant to Section 7 of Chapter 8

of the Instrument of Government, issue regulations on the number of such members and how they shall be appointed. The Government appoints other members of the board of governors.

Staff representatives shall be entitled to attend and make representations at meetings of the board of governors. Act (2016:744).

Section 5

A higher education institution decides on its own internal organisation in addition to the board and vice-chancellor, unless otherwise provided. When the higher education institution decides on its internal organisation Sections 6 and 7 below are to apply. Ordinance (2010:701).

Section 5a

New heading Section 5 by virtue of ordinance (2009:764).

Section 6

Decisions are to be made by individuals with research or artistic competence if these decisions require appraisal of

1. the organisation, implementation or quality of a course or programme,
or
2. the organisation or quality of research.

If the appraisal referred to in the first paragraph above is to be made by a group of individuals, the majority of them shall possess research or artistic competence. A board may decide, however, that such a majority is not required if there are special grounds for doing so. Ordinance (2013:119).

Section 7

The students are entitled to representation when decisions or preparations are made that have bearing on their courses or programmes or the situation of students. The Government or the authority decided by the Government may, pursuant to Section 7 of Chapter 8 of the Instrument of Government, issue regulations on the number of such representatives and how they shall be appointed. Act (2016:744).

Section 8

In provisions about how the students appoint board members or representatives pursuant to Section 7, the Government may delegate the selection of members or representatives to specific individuals or associations. Act (2016:744).

Section 9

The Government issues special regulations on the composition of the board of governors at the Swedish University of Agricultural Sciences and at the Swedish Defence University as well as a research and study programmes board at the Swedish Defence University. Ordinance (2010:701).

Chapter 3 Professors and other teaching staff

Section 1

The duties assigned to teaching staff may comprise educational responsibilities or research and also administrative tasks. Teachers are also responsible for keeping abreast of developments within their own subject areas and developments in the wider community that are significant for their teaching roles in higher education. Ordinance (2013:119).

Section 2

Higher education institutions shall employ professors and senior lecturers to undertake teaching and research.

A professorship is the most senior teaching appointment.

The Government issues regulations on the qualifications and assessment criteria that will apply to the employment of professors and senior lecturers. Ordinance (2010:701).

Section 3

A professor shall be employed until further notice unless otherwise stipulated in the paragraph below.

A professor may be employed for a fixed term, if the appointment concerns:

1. a creative or artistic subject,
 2. an adjunct post at a higher education institution for someone mainly employed outside the higher education sector (adjunct professor), or
 3. a position as a visiting lecturer for a person who has the required qualifications for appointment as a professor (visiting professor).
- Ordinance (2010:701).

Section 4

Has been repealed by ordinance (1997:797).

Section 5

Has been repealed by ordinance (2010:701).

Section 6

Unless otherwise provided by regulations issued by the Government, each higher education institution shall itself decide which categories of teachers, apart from professors and senior lecturers, it shall employ and the qualifications and assessment criteria to apply to such appointments. Ordinance (1997:797).

Section 7

In parallel with their teaching posts, teachers at higher education institutions may undertake employment or assignments or pursue activities relating to research and development work within the subject area of their posts, if in doing so they do not undermine the confidence of the general public in the higher education institution. Such secondary occupations shall be kept clearly separate from the tasks assigned to them within their posts.

Other issues relating to secondary occupations are subject to the provisions laid down in the Public Employment Act (1994:260). Ordinance (1997:797).

Section 8

The Government or the agency nominated by the Government may stipulate that a teaching post at a higher education institution shall be combined with employment as a physician or dentist with specialist training, or with employment other than as a physician at a designated healthcare facility for medical training and research. A combined post may only be held by someone eligible for both appointments.

The regulations that apply to teaching appointments shall also apply to appointments to be combined with teaching posts.

Before appointment to a teaching post the accountable authority for health care shall be enabled to make representations, if the position is to be combined with a post in a health care facility. Ordinance (1997:797).

Chapter 4 Students

Section 1

In so far as this is possible in compliance with the quality requirement laid down in the first paragraph of Section 4 of Chapter 1, higher education institutions shall admit students who fulfil the entry requirements for their studies.

Section 2

Unless otherwise provided by regulations issued by the Government or the agency nominated by the Government, the higher education institution offering a course or study programme shall decide on its entry requirements. Ordinance (2012:910).

Section 3

If there are not enough places on a programme for all the qualified applicants, a selection shall be made. The Government or the agency nominated by the Government may issue regulations on selection. Ordinance (1996:555).

Section 4

Education is to be provided without charge to students who are citizens of

1. a state that is included in the Agreement on the European Economic Area, or
2. Switzerland.

The first paragraph above does not apply to a fee paid in order to enable a student to participate in first or second-cycle courses or programmes within the framework of an agreement on educational cooperation between a HEI and HEI outside Sweden if the fee

1. is not received by the HEI, and
2. is not intended to pay for the section of a programme arranged by the HEI.

The Government or the agency nominated by the Government issues regulations on the fees to be charged for students in first and second-cycle courses and programmes who are not citizens of the states laid down in the first paragraph above. Ordinance (2014:1579).

Section 4a

The Government issues regulations prohibiting a higher education institution from admitting an applicant required to pay a fee who has not paid the fee. Ordinance (2010:298).

Section 4b

The Government issues regulations on the suspension of fee-paying students who have begun a course or programme without paying the fee. Ordinance (2010:298).

Section 5

The Government may issue regulations relating to the temporary suspension of students.

Section 6

The Government may issue regulations on the expulsion of students until further notice in cases where the student:

1. suffers from a mental disorder,
2. abuses alcohol or drugs, or
3. has been found guilty of a serious crime.

A further requirement for expulsion is that a palpable risk is considered to exist that in consequence of the circumstances set out in 1-3 above the student can harm another person or damage valuable property during her or his studies.

Section 7

A board for the higher education sector shall hear issues relating to expulsion. The chair of the board shall be a lawyer and have experience of acting as a judge.

Students and higher education institutions may appeal to the general administrative courts against expulsion decisions taken by the board.

Leave to appeal is required before appeal may be made to the Administrative Court of Appeal.

At the request of the expellee, decisions relating to expulsion shall be reviewed after two years. Ordinance (1996:555).

Section 8

A higher education institution shall on application decide that an association of students at the institution may be granted the status of a student union for a specified period if the association fulfils the requirements laid down in Sections 9-14. Ordinance (2009:766).

Section 9

A student union shall lay down that its main purpose is to monitor and take part in the development of courses and programmes as well as the conditions applying to studies at the higher education institution. Ordinance (2009:766).

Section 10

The area of activity of a student union may not comprise more than one higher education institution and shall coincide with at least one organisational or geographical section of the higher education institution. Ordinance (2009:766).

Section 11

A student union shall be democratically organised and able to represent the students within the union's area of activity. Ordinance (2009:766).

Section 12

All students within a student union's area of activity shall be entitled to become members of the union if they fulfil the requirements laid down for membership of an association of the kind stipulated in Section 8.

A student who is a member of a student union shall be entitled to vote in the election of the student union's supreme deciding body. Ordinance (2009:766).

Section 13

An association of the kind stipulated in Section 8 shall have articles and a board. The articles shall have been adopted by the members of the association.

These articles shall stipulate the following:

1. the aims and area of activity of the association,
2. the identity of the supreme deciding body and how it is elected,
3. how decisions by the supreme deciding body and the board are to be made and published,
4. how admission to and withdrawal from membership of the association is to take place,
5. how the board is to be discharged of responsibility,
6. how changes are to be made to the articles, and
7. how the association is to be dissolved.

Ordinance (2009:766).

Section 14

A student union shall maintain a register of its members.

A student union shall submit an annual report on its activities to the higher education institution and an account of how many students are members.

At the request of the higher education institution, a student union shall provide the institution with its register of its members. Ordinance (2009:766).

Section 15

The status of 'nation' is enjoyed by the 'nations' at Uppsala University and Lund University

1. which students were required to join pursuant to the regulations that applied immediately prior to 1 July 2010 and which provided student welfare activities for students,
 2. whose main purpose was to support the students belonging to the 'nation' and advance their studies through the provision of student welfare activities, and
 3. which support students by providing student welfare activities.
- Ordinance (2009:766).

Chapter 5 Special provisions

Section 1

A special appeals board shall hear appeals against certain decisions relating to the higher education sector.

No appeal may be made against the adjudication of the board on an appeal submitted to it.

Section 2

New heading Section 8 of Chapter 2. Ordinance (2010:701).

Section 3

Has been repealed by ordinance (1996:298).

Section 4

Has been repealed by ordinance (2012:910).

Section 5

Has been repealed by ordinance (2012:910).

Section 6

The Government or the agency nominated by the Government may issue additional regulations relating to higher education.

Section 7

Has been repealed by ordinance (2010:701).

Transitional provisions**SFS 1995:96**

This law shall enter into effect on 1 April 1995. Appeals may be made pursuant to earlier provisions against decisions issued before it has entered into effect.

SFS 1995:817

1. This law shall enter into effect on 1 July 1995.
2. Regulations relating to the higher education institutions, apart from the Swedish University of Agricultural Sciences, at which certain qualifications may be awarded issued by the Government before this law comes into force and that become effective no later than 1 July 1995 shall continue to apply until otherwise decided by the agency nominated by the Government. Ordinance (2012:490).

SFS 1996:298

This law shall enter into effect on 1 July 1996. Remuneration pursuant to the repealed provision in Section 3 of Chapter 5 shall not be paid in respect of the period after 31 December 1995. The new wording of the second paragraph of Section 4 of Chapter 5 shall apply to remuneration for the period after 31 December 1995.

SFS 1996:555

This law shall enter into effect on 1 July 1996. The earlier wording of Section 7 of Chapter 4 shall apply to decisions issued by the board before this provision enters into effect.

SFS 1997:797

1. This law shall enter into effect with respect to Section 4 of Chapter 2 on 1 January 1998 and in other respects on 1 January 1999.
2. An application for entitlement to award third-cycle qualifications on which no decision has been made by the Swedish National Agency for Higher Education by the end of December 1998, shall be treated as an application for a decision by the Agency pursuant to the new provision in Section 5 of Chapter 2.
3. If the procedure for the appointment of a senior lecturer has commenced but not been concluded before 1 January 1999, the earlier provisions relating to qualifications and assessment criteria in Section 5 of Chapter 3 apply.

SFS 1997:1330

Earlier provisions shall, however, apply to those who have been appointed to professorships for an indefinite period prior to 1 January 1999.

SFS 2006:173

1. This law shall enter into effect on 1 January 2007, except for Section 12 of Chapter 1, Sections 5a & 7 of Chapter 2, and Section 2 of Chapter 4, which enters into effect on 1 July 2007.
2. The new provisions in Sections 7—9a and 10a—11a of Chapter 1 are to apply to courses and study programmes that begin after the end of June 2007 or qualifications awarded subsequently.
3. The Government may issue regulations about the extent to which courses and study programmes may be completed and qualifications awarded pursuant to earlier provisions.
4. Decisions on the power to award qualifications made by the Government or some other agency pursuant to earlier regulations continue to apply.

SFS 2009:695

This law shall enter into effect on 1 January 2010 and applies to courses and study programmes that begin after the end of June 2010.

SFS 2009:764

1. This law shall enter into effect on 1 January 2010.
2. The Government may issue regulations about the extent to which higher education institutions other than universities may award third-cycle qualifications pursuant to earlier provisions.

SFS 2009:1037

This law shall enter into effect on 1 July 2011. Earlier provisions continue to apply to courses and study programmes that begin before its entry into effect.

SFS 2010:2002

This law shall enter into effect on 1 January 2011.

SFS 2012:490

This law shall enter into effect on 1 January 2013.

SFS 2012:910

This law shall enter into effect with respect to the Annex on 1 July 2013 and in other respects on 1 February 2013.

SFS 2013:119

This law shall enter into effect on 1 June 2013.

2013:1117

This law shall enter into effect on 1 January 2014.

2014:1579

This law shall enter into effect on 1 February 2015.

Annex

This annex lists the higher education institutions which pursuant to Section 17 of Chapter 1 may award joint degrees.

Uppsala University
Lund University
University of Gothenburg
Stockholm University
Umeå University
Linköping University
Karolinska Institutet (university)
KTH Royal Institute of Technology (university)
Luleå University of Technology
Karlstad University
Linnaeus University
Örebro University
Mid Sweden University
Malmö University
Swedish University of Agricultural Sciences
Blekinge Institute of Technology
Swedish Defence University
The Swedish School of Sport and Health Sciences
University of Borås
Dalarna University
University of Gävle
Halmstad University
Kristianstad University
University of Skövde
University West
University of Arts, Crafts and Design
Royal Institute of Art
Royal College of Music in Stockholm
Mälardalen University
Stockholm University of the Arts
Södertörn University

Act (2017:279).

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